RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

Olam HaBa Is Already Here: Mashiah & the Resurrection Puzzle

Hilchot Teshuvah Perek 8

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapter: 8, Halachot 5–8 (end of the chapter), and the Rambam's whole framework of the afterlife

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 17 December 2024

These notes are based on the Sofer.ai transcript of the recording. The Sofer.ai audio of this class is the only recording found.

Recap: Chapter 8, Halachot 1–4

- **Why here?** Teshuvah naturally leads to Olam HaBa; and before Chapters 9–10 (no reward in this world, serve from love), the Rambam wants it clear that the real reward is Olam HaBa.
- **Halacha 1:** the greatest reward is Olam HaBa, "long" and "good"; the greatest consequence is **karet**, being cut off.
- **Halacha 2:** Olam HaBa has **nothing physical**: no eating, drinking, sleeping, sitting, pleasure or pain. "A state of pure existence." The **crowns** of the righteous are their **intellect**: how far they refined their understanding of Hashem, Torah and mitzvot. The bigger the crown, the closer the seat.
- **The Ra'avad's** objection rested on treating **Techiyat HaMetim** as the gateway to Olam HaBa; for the Rambam they are separate.
- **Halacha 3:** the "soul" means **intellect**, not the animal life-force.
- **Halacha 4:** Tanach's many names (**הר ה', ארץ החיים, חצרות ה'**…) all mean Olam HaBa.

Part 1: Karet's Names (Halacha 5)

> **הנקמה שאין נקמה גדולה ממנה, שתכרת הנפש ולא תזכה לאותן החיים... וזהו האבדון שקורין אותו הנביאים דרך משל: באר שחת, ואבדון, ותפתה, ועלוקה**

The greatest retribution is that the soul is cut off and does not merit that life… This is the destruction the prophets call, metaphorically, "the pit of destruction," *Avaddon*, *Tofteh*, *Aluka*.

Just as Olam HaBa has many names, so does **karet**: "there is nothing worse than this."

As explained before, for the Rambam karet is not *only* ceasing to exist; **a residue of identity remains** that knows what it is missing. People who read him as saying the wicked simply vanish thought he was wrong; this was **one of the reasons his books were burned in the 13th century.** "As we proved last time, that clearly was not the Rambam's understanding."

Part 2: Don't Imagine a Physical Paradise (Halacha 6)

שמא תהיה קלה בעיניך טובה זו, ותדמה שאין שכר המצוות ושלמות האדם... אלא שיהיה אוכל ושותה מאכלות טובות, ובועל צורות נאות, ולובש בגדי שש ורקמה, ושוכן באהלי שן, ומשתמש בכלי כסף וזהב... כמו שמדמין אלו הערביים הטפשים האווילים השטופים בזמה. אבל החכמים ובעלי דעה יודעים שכל הדברים האלו דברי הבאי והבל... ואינן טובה גדולה אצלנו בעולם הזה אלא מפני שאנו בעלי גוף וגויה

Perhaps this good seems slight to you, and you imagine the reward of mitzvot is to eat and drink fine food, enjoy beautiful partners, wear fine linen, live in ivory palaces and use gold and silver… as the foolish Arabs, steeped in promiscuity, imagine. But the wise know these are empty words… they seem great to us in this world **only because we have bodies.**

- The Rambam "doesn't mince his words." Whatever one thinks of the political correctness, he is echoing the **Gemara in Kiddushin**: ten measures of promiscuity came down to the world, and nine went to the Arabs. (Who exactly "the Arabs" are there "is a different discussion.") He is referring to certain conceptions of a sensual paradise.
- **Why do we value money, homes, food and partners?** Because we live in bodies, which need security and pleasure. Remove the body, and they are irrelevant. "This is why the concept of there being no body is so fundamental."

Two proofs that physical pleasure isn't the ultimate good

1. **The diet** (Rambam, Commentary on the Mishnah, Sanhedrin): at a wedding with the best caterer, a person on a diet still says "no thank you." "Even in the physical world we see that these pleasures are not the ultimate good." The Rabbi: "I really liked that when I saw that."
2. **The blind man and colour**: you could spend years describing red versus orange to someone who has never seen, and make no progress. So too, we can't describe the pleasure of Olam HaBa while we live in bodies.

Part 3: Beyond Description (Halacha 7)

מה רב טובך אשר צפנת ליראיך: How great is Your goodness, which You have hidden for those who fear You.

- **David HaMelech longed for it**: **לולא האמנתי לראות בטוב ה' בארץ חיים**, "had I not believed I would see the goodness of Hashem in the land of the living…" "If only I could get a feeling in this world of what Olam HaBa is." It isn't possible.
- **The prophets only described the days of Mashiach.** "The wolf will lie with the lamb, whatever that means," Israel's sovereignty: all physical, all this world. Olam HaBa: **עין לא ראתה אלהים זולתך**, "no eye has seen it, except God."

"Whoever tries to tell you what's going to happen and how you're going to feel there is talking nonsense." We can know **general truths**: it is the greatest good and it is everlasting. Just as with knowledge of Hashem, our physical limits stop us there.

Part 4: The Most Important Halacha: Olam HaBa Exists *Now* (Halacha 8)

"It looks like an innocent halacha, but it's not."

The Rabbi asked the class to translate **עולם הבא**. **Olivia:** "the world to come," a world beyond ours. Which implies it isn't here yet.

> **זה שקראו אותו חכמים העולם הבא, לא מפני שאינו מצוי עתה, וזה העולם אובד, ואחר כך יבוא אותו העולם. אין הדבר כן, אלא הרי הוא מצוי ועומד, שנאמר אשר צפנת... ולא קראוהו העולם הבא אלא מפני שאותן החיים באין לו לאדם אחר חיי העולם הזה**

The Sages called it "the World to Come" **not because it doesn't exist now**, and this world will be destroyed and then that world will come. That is not so. **It exists and stands now**, as it says "which You have hidden away…" It is called "to come" only because that life comes to a person **after** this life in body and soul.

Why this matters

"The central point of this chapter is **how Olam HaBa impacts on Olam HaZeh**."

If Olam HaBa is a separate future world, built for me later according to my mitzvot and aveirot, it is disconnected from my actions. The Rambam's view:

Olam HaBa emerges from one's activities in this world. It exists *concurrently*. "Through the identity we create every moment of life, the way we behave, **we are creating or destroying our Olam HaBa**." You must pass through this world first, because this is where the work is done, but what you arrive at is what you built.

A participant: isn't it like crossing a bridge, with Olam HaBa waiting on the other side? "That's true partially… but I want to say even more: **you are creating what's going to be at the end of the bridge.**"

(Asked about Gan Eden: "Let's finish getting Olam HaBa clear and then we'll come to Gan Eden.")

The Ra'avad: what about 6,000 years?

The Ra'avad objects: the Gemara says the world will exist for **6,000 years** and then be destroyed (we are in 5785, "so we have 215 years yet"). Doesn't the Rambam deny this?

Yes, he does. In the **Moreh Nevuchim** he says it can't be taken literally: after the destruction there are supposedly "1,000 years of void," but **time itself is created**, so how do you measure a thousand years without a world? And it is a single opinion, not the accepted view. "I suppose if we live the next 250 years we'd know… maybe my great-grandchildren."

Part 5: Two Frameworks for the Afterlife

The other view: Rav Saadiah Gaon, the Ramban, the Ramchal

Stage	Rav Saadiah / Ramban / Ramchal
1	We live and die
2	**This world is destroyed**
3	Those who merit it are **resurrected** in their bodies
4	They live forever, in their bodies, in a **new world**: *that* is Olam HaBa

(The Monday class will reach this in Rav Saadiah's Essay 9.)

The **Ramchal** (*Derech Hashem*, *Da'at Tevunot*, which some of the class learned): the bodies and world are physical but highly **refined**, like **Adam before the sin**. *Da'at Tevunot* discusses what that body will be like, and stages of elevation (6,000 to 7,000, 7,000 to 8,000 years, and on). Bluntly: **the body worked in this world, so the body must also receive its reward.**

In this view resurrection makes perfect sense: you need a body for Olam HaBa.

The Rambam's puzzle

For the Rambam, Olam HaBa is pure intellect, existing now. So **why would Hashem take someone *out* of Olam HaBa to return to a body?** "It's mind-boggling what the Rambam does with Techiyat HaMetim." That is why he was accused, in his life and after, of denying resurrection.

The Letter on Resurrection

The plan: after finishing Chapters 9–10 in early January, spend about half a year on **the Rambam's letters**, including the long **Essay on Resurrection**. Some points from it:

- Again: everyone wants to know about resurrection (what clothes, how tall?) and no one asks about Olam HaBa.

- **"How can they accuse me?"** He listed Techiyat HaMetim in the **13 Principles**, and in Hilchot Teshuvah 3 among those with no share in Olam HaBa is **one who denies resurrection**.

- He heard that students in **Damascus** were quoting him as denying it. He ignored one person, but when many said it, he wrote to set the record straight.

- **Anyone who says I called resurrection a metaphor is lying. Show me where.** The resurrected will **eat, drink, marry, have children, and die after a long life**, in a life like the days of Mashiach.

But did he really mean it?

"So much ink has been spilled on this, a lot in academic circles." A common view is that the Rambam wrote the letter **under pressure**, with his books being banned, but really understood resurrection as a metaphor for the life to come.

Two pieces of evidence the Rabbi finds strong:

1. **The cemetery blessing** (seen after 30 days): the Gemara (Berachot 58b) has **אשר יצר אתכם בדין… והמית אתכם בדין, ועתיד להקים אתכם בדין**, "who created you in judgement… caused you to die in judgement, and will raise you in judgement." A "really subtle" proof, credited to a **Chief Rabbi (Haham) of the Spanish & Portuguese community about a century ago**: compare the Rambam's codified version (Hilchot Berachot), which **adds words** not in the Gemara. On the Rabbi's reading, the Rambam's version ties the "raising" to the **life of the World to Come**, because for the Rambam the blessing should be about Olam HaBa, not resurrection.
2. **The 13 Principles** include reward and punishment, Mashiach, and Techiyat HaMetim, but **no principle called "Olam HaBa"**, though it is the centre of his whole philosophy. That makes most sense **if Techiyat HaMetim *is* Olam HaBa** in his mind.

"It certainly seems, in my opinion, that the Rambam understood Techiyat HaMetim to be actually not a physical resurrection, but **your identity continuing in Olam HaBa**." But he wrote a whole essay saying otherwise, so the question stays open.

Part 6: Where Mashiach Fits

The Rambam is explicit elsewhere (Hilchot Melachim): **Mashiach is in this physical world.**

- **Israel fully sovereign**: "no more UN resolutions against Israel," no one on its borders trying to destroy it.

- **"The wolf will dwell with the lamb"**: peace among the nations.

- Midrashim about loaves and silk garments growing on trees are **metaphors**: you won't need to worry about the next meal, suit, rent or mortgage payment, so you can focus on **developing your intellect**.

- Life goes on as usual: eating, drinking, marriage, everything bodily.

- The **Beit HaMikdash** is rebuilt and **Eliyahu HaNavi** heralds the era.

"Of course we want Mashiach, because that's the time we can dedicate ourselves to Hashem and to developing our identity. But in the grand scheme of things it's a small thing in comparison to Olam HaBa."

Not in the Rambam

- **No gilgul** (reincarnation). Not resurrection: the idea of the soul returning in *another* body. He never mentions it; "most of the Rishonim held like him."
- **No *kaf hakela*.**

The Rambam's Framework in Summary

Element	The Rambam
Olam HaZeh	Where you **create** your Olam HaBa, through the identity you build
Olam HaBa	Exists **now**; non-physical; intellect and consciousness; the ultimate good and everlasting; indescribable. You enter after death
Karet	Cut off from Olam HaBa, with a residue aware of the loss
Yemot HaMashiach	A future era in **this** physical world: sovereignty, Beit HaMikdash, Eliyahu, freedom to pursue wisdom
Techiyat HaMetim	Officially a physical resurrection to a Mashiach-like life (Letter on Resurrection); possibly, in his deeper view, identity continuing in Olam HaBa
6,000 years	Not literal; the world continues
Gilgul / kaf hakela	Not part of his thought

Versus Rav Saadiah / Ramban / Ramchal: this world ends; the worthy are resurrected in refined bodies; Olam HaBa is that new, elevated, physical world.

Everyone agrees on one thing: **what Olam HaBa will actually be like is unfathomable.**

Coming Up

- **Winter break.** Resume in **early January** with **Chapters 9 and 10**, the final chapters: more on reward, and **serving Hashem from love**.
- **From late January:** a new series on **the Rambam's letters** (Teiman, Astrology, Resurrection and others), "a good half a year or so."
- Gan Eden, and how it fits, is still to come.

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